

GRANT OF ACCESS EASEMENT

KNOW ALL MEN BY THESE PRESENTS that, for and in consideration of the sum of Nineteen Thousand Eight Hundred Seven Dollars and Thirty-Four Cents (\$19,807.34) and other valuable considerations in hand paid, the receipt and adequacy of which is hereby acknowledged, the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, hereinafter referred to as GRANTOR, does hereby grant, remise and relinquish unto Christensen's Inc., hereinafter referred to as GRANTEE, the non-exclusive right, privilege, authority, and easement for use and maintenance of an access road, drainage conveyance, and Board of Public Utilities (BOPU) Utility Easement across lands owned by GRANTOR, or in which GRANTOR has any interest, as shown in Exhibit A which is attached hereto and incorporated herein and legally described as follows:

SITUATED IN A PORTION OF THE SW 1/4 NE 1/4, SECTION 36, TOWNSHIP 14 NORTH, RANGE 67 WEST OF THE SIXTH PRINCIPAL MERIDIAN CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE INTERSECTION OF THE SOUTH RIGHT-OF-WAY LINE OF TALBOT COURT AND THE WEST RIGHT-OF-WAY LINE OF CRIBBON AVENUE;

THENCE CONTINUING ALONG SAID WEST RIGHT-OF-WAY OF CRIBBON AVENUE S. 00°05'35" E., A DISTANCE OF 592.25 FEET TO THE POINT OF BEGINNING;

THENCE LEAVING SAID WEST RIGHT-OF-WAY LINE OF CRIBBON AVENUE N. 69°26'41" W., A DISTANCE OF 150.59 FEET;

THENCE S. 00°00'00" W., A DISTANCE OF 59.57 FEET TO A POINT;

THENCE S. 69°19'50" E., A DISTANCE OF 150.85 FEET TO A POINT ON THE WEST RIGHT-OF-WAY LINE OF CRIBBON AVENUE;

THENCE CONTINUING ALONG SAID WEST RIGHT-OF-WAY LINE N. 00°08'15" W., A DISTANCE OF 59.95 FEET MORE OR LESS TO THE POINT OF BEGINNING.

SAID PARCEL OF LAND CONTAINS 0.19 ACRES MORE OR LESS.

GRANTOR further grants to the GRANTEE the right to enter upon said land and the right to use and maintain any and all structures, appurtenances and fixtures along said public access.

GRANTOR further grants to GRANTEE the right to ingress and to egress from the above described land and covenant that they shall, in no way, hinder or prevent the proper and reasonable use and enjoyment of said property by GRANTEE.

GRANTEE and GRANTOR have executed a Driveway, Drainage, and Board of Public Utilities (BOPU) Utility Easement Maintenance Agreement stating maintenance responsibilities of the parties.

In the event of an excavation in the above-described easement by the GRANTOR, the GRANTOR shall be responsible to backfill and grade such right-of-way to the specifications as defined and adopted by City, and any costs for said restoration shall be borne by City, their successors and assigns. However, City shall not be required to restore any improvements, such as pavement or vegetation. Any costs for restoration beyond backfill and grading shall be borne by GRANTEE, their successors and assigns.

The rights granted herein shall forever be subject to the rights of the City of Cheyenne, its assigns or lessees to explore for, develop, and extract any and all minerals or other subsurface resources beneath this easement. If required for mineral exploration, development or extraction, the GRANTEE shall, upon written notice from the GRANTOR, remove or relocate at its own expense the above described assets.

Upon abandonment or discontinuance of use of this easement for the purposes specified above, all of GRANTEE'S rights under this grant of easement shall revert to the City of Cheyenne or its assigns, the same as if this grant had never been made. Should this easement be abandoned by the GRANTEE, GRANTEE shall remove said assets and the above described tract of land shall be returned to a condition satisfactory to the landowner.

The easement may be transferred; however, no transfer may increase the burden on the servient estate in any manner.

Any transfer of ownership of this easement, or any change of name or mailing address of the owner of this easement, shall be reported to the GRANTOR in writing within thirty (30) days of the transfer or change.

The GRANTEE releases and agrees to save and hold harmless GRANTOR, its officers, agents and employees, from any causes of action or claims or demands arising out of this grant of easement, except to the extent any such cause of action or claims or demands are the result of the negligence or willful misconduct of the GRANTOR, its agents, or employees.

Included in this grant shall be the right to lay, construct, maintain, operate, alter, repair, remove, change the size of, and replace at any time the assets laid by GRANTEE.

This easement is a covenant running with the land and shall be binding upon the parties hereto, their heirs, devisees, representatives, successors and assigns; and the rights, privileges

and authorities herein granted shall be assignable together or separately and in whole or in part.

Dated this _____ day of _____, 2020.

FOR GRANTOR:

Marian J. Orr, Mayor

(SEAL)

Attest: _____

Kristina F. Jones, City Clerk

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

This instrument was acknowledged before me, the undersigned officer, on this _____ day of _____, 2020, by Marian J. Orr, Mayor of the City of Cheyenne, Wyoming, and Kristina F. Jones, City Clerk for the City of Cheyenne, Wyoming.

Witness my hand and official seal.

(SEAL)

Notary Public

My commission expires: _____

FOR GRANTEE:

By: _____
Robert H. Christensen
Christensen's Inc.

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

This instrument was acknowledged before me, the undersigned officer, on this _____ day of _____, 2020, by Robert H. Christensen, _____ of Christensen's Inc.

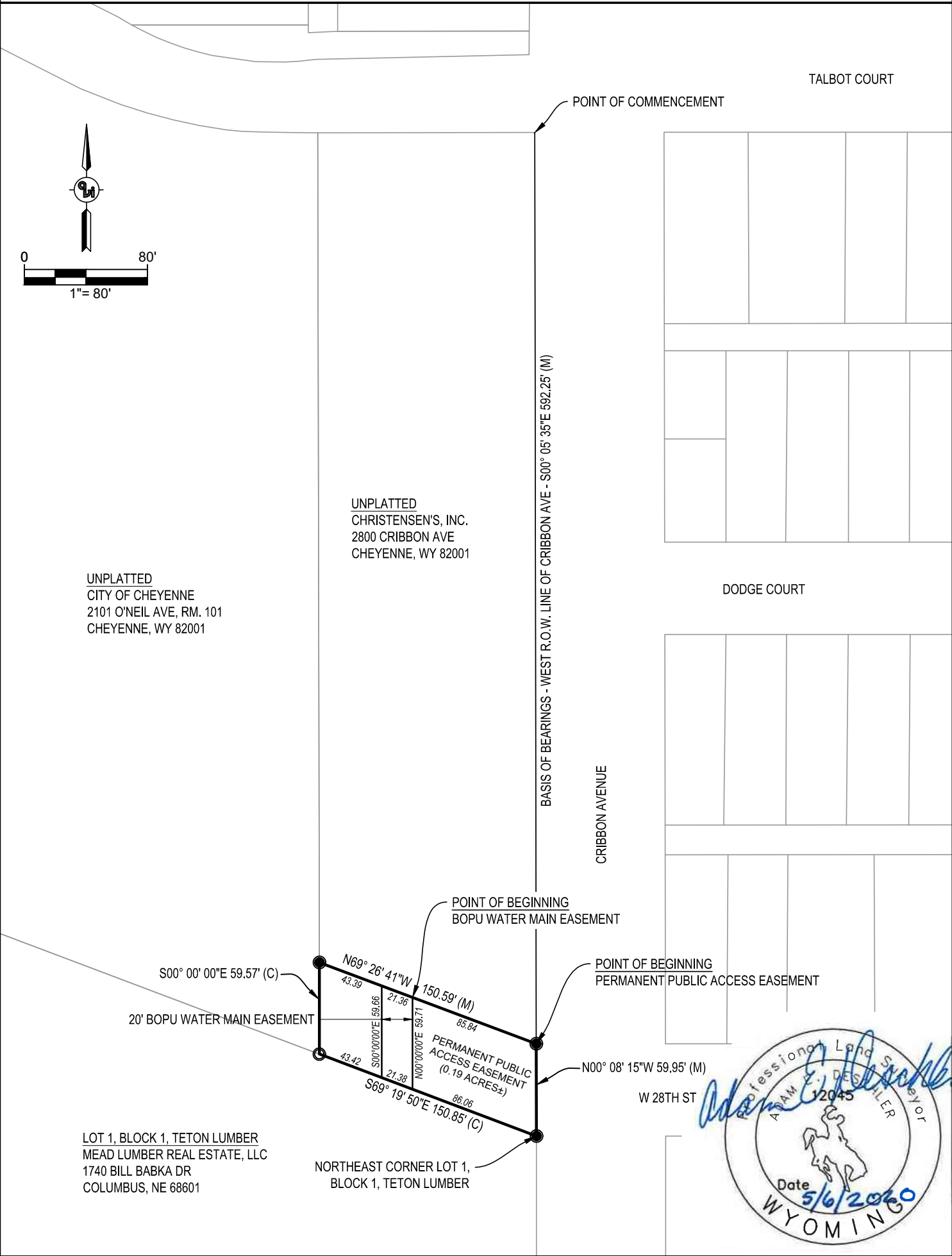
Witness my hand and official seal.

(SEAL)

Notary Public

My commission expires:_____

EXHIBIT A - PAGE 1 OF 2





ENGINEERING
PLANNING
SURVEYING
PC

307.637.6017
1103 OLD TOWN LANE, SUITE 101
CHEYENNE, WY 82009
AVI@AVIPC.COM

FILING RECORD

PERMANENT PUBLIC
ACCESS EASEMENT AND
BOPU WATER MAIN EASEMENT
SITUATED IN A PORTION OF
SW¼ NE¼, SEC 36, T14N, R67W, 6th P.M.,
LARAMIE COUNTY, WYOMING
PREPARED APRIL 2020

EXHIBIT A - PAGE 2 OF 2

LEGAL DESCRIPTION - PERMANENT PUBLIC ACCESS EASEMENT

SITUATED IN A PORTION OF THE SW 1/4 NE 1/4, SECTION 36, TOWNSHIP 14 NORTH, RANGE 67 WEST OF THE SIXTH PRINCIPAL MERIDIAN, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCING AT THE INTERSECTION OF THE SOUTH RIGHT OF WAY LINE OF TALBOT COURT AND THE WEST RIGHT OF WAY LINE OF CRIBBON AVENUE; THENCE CONTINUING ALONG SAID WEST RIGHT OF WAY OF CRIBBON AVENUE S00°05'35"E A DISTANCE OF 592.25 FEET TO THE POINT OF BEGINNING;

THENCE LEAVING SAID WEST RIGHT OF WAY LINE OF CRIBBON AVENUE N69°26'41"W A DISTANCE OF 150.59 FEET;

THENCE S00°00'00"W A DISTANCE OF 59.57 FEET TO A POINT;

THENCE S69°19'50"E A DISTANCE OF 150.85 FEET TO A POINT ON THE WEST RIGHT OF WAY LINE OF CRIBBON AVE, ALSO BEING THE NORTHEAST PROPERTY CORNER OF LOT 1, BLOCK 1, TETON LUMBER;

THENCE CONTINUING ALONG SAID WEST RIGHT OF WAY LINE N00°08'15"W A DISTANCE OF 59.95 FEET MORE OR LESS TO THE POINT OF BEGINNING.

SAID PARCEL OF LAND CONTAINS 0.19 ACRES MORE OR LESS.

LEGAL DESCRIPTION - BOPU WATER MAIN EASEMENT

THE FOLLOWING METES AND BOUNDS DESCRIBE A 20' WIDE WATER MAIN EASEMENT EXCLUSIVE TO THE CHEYENNE BOARD OF PUBLIC UTILITIES. SAID EASEMENT LIES ENTIRELY WITHIN THE LARGER PERMANENT PUBLIC ACCESS EASEMENT. THE PARCEL OF LAND DESCRIBED BELOW IS SUBJECT TO ALL PROVISIONS OF THE PERMANENT PUBLIC ACCESS EASEMENT WITHIN WHICH IT IS CONTAINED.

SITUATED IN A PORTION OF THE SW 1/4 NE 1/4, SECTION 36, TOWNSHIP 14 NORTH, RANGE 67 WEST OF THE SIXTH PRINCIPAL MERIDIAN, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCING AT THE INTERSECTION OF THE SOUTH RIGHT OF WAY LINE OF TALBOT COURT AND THE WEST RIGHT OF WAY LINE OF CRIBBON AVENUE; THENCE CONTINUING ALONG SAID WEST RIGHT OF WAY OF CRIBBON AVENUE S00°05'35"E A DISTANCE OF 592.25 FEET; THENCE LEAVING SAID WEST RIGHT OF WAY LINE N69°26'41"W A DISTANCE OF 85.84 FEET TO THE POINT OF BEGINNING;

THENCE N69°26'41"W A DISTANCE OF 21.36 FEET TO A POINT;

THENCE S00°00'00"E A DISTANCE OF 59.66 FEET TO A POINT ON THE NORTH LINE OF LOT 1, BLOCK, TETON LUMBER;

THENCE CONTINUING ALONG SAID NORTH LINE OF LOT 1, BLOCK 1, TETON LUMBER S69°19'50"E A DISTANCE OF 21.38 FEET;

THENCE LEAVING SAID NORTH LINE OF LOT 1, BLOCK 1, TETON LUMBER N00°00'00"EA DISTANCE OF 59.71 FEET MORE OR LESS TO THE POINT OF BEGINNING.

SAID PARCEL OF LAND CONTAINS 1,193 SQUARE FEET MORE OR LESS.



FILING RECORD



PERMANENT PUBLIC
ACCESS EASEMENT AND
BOPU WATER MAIN EASEMENT
SITUATED IN A PORTION OF
SW¼ NE¼, SEC 36, T14N, R67W, 6th P.M.,
LARAMIE COUNTY, WYOMING
PREPARED APRIL 2020